

16. 9:00 AM CASE NUMBER: C25-01992
CASE NAME: JUSTIN WANG VS. TESLA, INC
HEARING IN RE: APPLICATION OF JAMES CULLEN EVANS TO APPEAR PRO HAC VICE ON BEHALF OF DEFENDANTS
FILED BY: TESLA, INC
TENTATIVE RULING:

Parties to Appear

17. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by the City of Richmond and Hector Lopez to the complaint. For the reasons set forth, the Court rules as follows: (a) the demurrer to the Complaint in its entirety is **OVERRULED**; and (b) the demurrer to the first through ninth causes of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Mr. Malboubi located on 24th Street in the City of Richmond. (Compl. ¶¶ 2, 3.) (The City represents Mr. Lopez retired as a City planner on August 16, 2025. (MPA ISO Dem. p. 7, fn. 1.))

Mr. Malboubi informed Mr. Lopez he wanted to subdivide the property into "two separate legal units." (Compl. ¶ 3.) Plaintiff alleges he obtained a survey and submitted an application and other paperwork to the City in April 2024. (Compl. ¶ 7.) Mr. Lopez informed him that for a lot split, because all six utility meters were located on one of the proposed parcels, three of the meters would have to be moved to the other proposed parcel so that each of the two properties had its own set of utility boxes. Mr. Malboubi alleges he informed Mr. Lopez by email on May 23, 2024 he wanted instead to proceed with the project as a condominium or townhouse conversion. (Compl. ¶¶ 9-11.)

Plaintiff describes a series of communications with Mr. Lopez, and Plaintiff's submission of proposed deeds, utility easements, and other documents requested by Mr. Lopez. He attaches an email from Mr. Lopez dated November 13, 2024 in which Mr. Lopez stated that, "If no objections are received, the City will issue an approval letter and forward the documents to the County for recordation." (Compl. ¶¶ 12-25.) He alleges a series of additional communications with Mr. Lopez after November 14, 2024. (Compl. ¶¶ 27-34.)

Plaintiff alleges he complied with Mr. Lopez's requests and expected after January 2025 the project would be approved. (Compl. ¶ 35.) He alleges on March 6, 2025, Mr. Lopez sent an email stating that

he met with the Director of Planning ("Director") for a final decision, and the Director imposed as a condition of approval separate utilities for the properties because only a condominium project with a homeowner association can utilize the arrangement proposed by Plaintiff with utilities located on a separate property and a utility easement. (Compl. ¶ 39.) He alleges he emailed Mr. Lopez on March 10 and 11, 2025 and asked if the March 6, 2025 email was a "final statement of decision" or if a formal "denial" would be issued but did not receive a response. (Compl. ¶ 43.) He alleges he was "willing to provide a simple HOA document," but he does not allege he provided such a document to support his application. (Compl. p. 16, ¶ k.)

Mr. Malboubi includes lengthy allegations regarding his "response" to issues raised by the City in approving the project, subject to relocation of certain utilities so that each separate property would have its own utilities. (Compl. ¶ 44.) Among his responses, Plaintiff alleges that he investigated relocating the utilities to comply with the condition imposed on his lot split application. Because there is no utility infrastructure located on 24th Street and the utility infrastructure is instead located on Gaynor Avenue, relocation of the utilities to create three separate lines for one of the proposed units is not feasible, but Mr. Lopez would not remove that condition. (Compl. ¶ 44.i.a.-j.) He alleges that the City has previously approved conversions of 2-4 unit properties into condominiums and includes documents he contends show two instances where properties with four or fewer apartment units were allowed to be converted to condominiums. (Compl. ¶ 44.)

Mr. Malboubi alleges that he exhausted all administrative remedies through the Planning Department and sought to appeal the decision to the City Council. (Compl. ¶ 45.) He alleges an Assistant City Clerk informed him he needed to appeal to the Planning Commission but that his efforts to place his project on the Planning Commission agenda for a hearing failed, as meetings were cancelled. (Compl. ¶¶ 46-51.) On May 28, 2025, Plaintiff alleges he renewed his request for a formal written denial and to be added to the Planning Commission agenda for hearing. (Compl. ¶ 52.) Mr. Lopez had advised him that notice to neighbors first had to be sent before Mr. Malboubi could appeal. (Compl. ¶¶ 51, 53.) Mr. Malboubi alleges that the City did not have any Planning Commission meetings in April and May 2025 because of lack of agenda items, and when he contacted the City and spoke to Mr. Lopez about his project being put on the June 19, 2025 Planning Commission agenda, he was informed the agenda was already full and the next available hearing date was in July. (Compl. ¶¶ 54-58.)

Mr. Malboubi alleges Mr. Lopez told him he had to cancel his application in order to "proceed to a Planning Commission meeting," and the City would only issue a formal denial if Plaintiff canceled his application. (Compl. ¶ 60.) Plaintiff contends he attempted to cancel the application but did not receive the formal denial letter as of the date of filing of his complaint on July 31, 2025. (Compl. ¶ 63.) Prior to filing suit, on June 1, 2025, Plaintiff filed a government claim with the City, which was rejected. (Compl. ¶¶ 66, 67, 72.)

On July 31, 2025, Plaintiff filed his complaint alleging nine causes of action against the City of Richmond and Mr. Lopez (the "City Defendants"). The City Defendants generally demur to the complaint in its entirety as well as to each of the causes of action.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the

complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.)

Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

City's Requests for Judicial Notice and Plaintiff's Objection

The City Defendants requested judicial notice of various provisions of the Richmond Municipal Code ("RMC"), including article 15.04.711, and sections 15.04.702.010, 15.04.702.050, 15.04.703.010, 15.04.703.060, 15.04.703.070, 15.04.710.130, and 15.04.104.020. (Def. RJN Exhs. 1-8.) The City Defendants also filed a supplemental request for judicial notice with their reply, asking for judicial notice of Richmond Ordinance No. 8-83 and RMC section 15.04.702.090. (Def. Suppl. RJN Exhs. 9, 10.) The Court takes judicial notice of these RMC provisions and Richmond Ordinance. (Evid. Code § 452(b).)

Plaintiff's objections to the requests for judicial notice are **OVERRULED**. The City Defendants have not asked the Court to take judicial notice of any particular interpretation of the RMC provisions but rather of their existence. Further, Plaintiff's position that the allegations of a complaint must be accepted as true, even if contradicted by matters subject to judicial notice, is not a correct statement of the law. (*Evans, supra*, 38 Cal.4th at 6 [" "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]"]).)

Plaintiff's Multiple Oppositions and Exhibits Opposing the Demurrer

The City Defendants filed their demurrer on September 2, 2025 with the hearing date information left blank. Consistent with the local rules and practices of this Court, after the City Defendants filed their demurrer, the Clerk set a hearing date on the demurrer. The City served an "Amended Notice of Hearing" on the demurrer that notified Plaintiff of the hearing date (December 22, 2025) and repeated the text of the demurrer. Plaintiff filed an opposition to the demurrer and objection to the City Defendants' request for judicial notice on September 10, 2025. The City Defendants filed their reply to Plaintiff's opposition on December 15, 2025.

On December 18, 2025, Plaintiff filed another opposition to the demurrer with two sets of additional exhibits and an objection to the City Defendants' supplemental request for judicial notice. After the Court posted a tentative ruling continuing the hearing on the demurrer from December 22, 2025 to

January 26, 2026, on December 22, 2025 Plaintiff filed an additional set of exhibits.

The Court is aware of no authority that allows a party to file multiple oppositions to the same motion. Even if the Court considered the additional opposition papers as a supplemental opposition, the papers were untimely under Code of Civil Procedure section 1005, which requires opposition to a demurrer, treated like a motion under the applicable California Rules of Court, to be filed and served nine court days prior to the hearing. (Code Civ. Proc. § 1005(b); Cal. R. Ct., Rule 3.1103.)

The additional opposition is also 26 pages in length, far exceeding the 15-page limit for an opposition memorandum, and the second opposition does not have tables of contents and authorities as required. (Cal. R. Ct., Rule 3.1113(d) ["no opening or responding memorandum may exceed 15 pages"], and Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) The Court also has no proof of service on the December 18, 2025 and December 22, 2025 filings showing that Plaintiff served the pleadings on counsel for the City Defendants. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) In addition, as to the exhibits filed by Plaintiff in opposition to the demurrer, the Court cannot consider other evidence in ruling on a demurrer except matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

For these reasons, the Court will not consider Plaintiff's additional opposition papers filed on December 18, 2025 and December 22, 2025.

Analysis

A. Summary of Plaintiff's Claims

Plaintiff's first cause of action alleges he is entitled to a writ of mandate "compelling the city to approve Plaintiff's subdivision or condominium conversion and forward the necessary documents to the County for recordation" and "a declaration under Code of Civil Procedure § 1060 that, under the circumstances of this case, the City cannot lawfully condition approval on the relocation of utilities where main service lines are unavailable and inaccessible." (Compl. ¶¶ 10, 11.)

B. Demurrer to Complaint in Its Entirety

The City Defendants demur to the complaint as a whole on the grounds that Plaintiff failed to exhaust his administrative remedies by pursuing an appeal to the City Council and that the dispute is also not ripe because Plaintiff has not completed the administrative review process. "A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.)

The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 ["With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional"

prerequisite to judicial consideration of the claim.' [Citation omitted, emphasis added.]"). Ripeness is related to exhaustion. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 156.) Ripeness concerns whether a controversy is "definite and concrete" such that specific, conclusive relief can be granted. (*Pacific Legal Foundation v. California Coastal Commission* (1982) 33 Cal.3d 158, 171.)

1. The City Defendants' Position

The City argues that an application for a tentative parcel map, which is a map for a subdivision of four or fewer parcels pursuant to Government Code section 66426, "is reviewed by the Planning Commission" and after a public hearing, the Planning Commission has to approve, conditionally approve, or deny the map, citing RMC sections 15.04.703.060 and 15.04.703.070. (MPA ISO Dem. p. 12, ll. 12-15.) RMC section 15.04.703.060 states in part "the Zoning Administrator shall schedule the proposed map for review and public hearing by the Planning Commission and shall provide notice of the public hearing" on a completed application. (Emphasis added.) The Planning Commission's decision is then appealable to the City Council. (MPA ISO Dem. p. 12, ll. 15-17.)

The City contends the procedures of RMC section 15.04.703.060 apply to a condominium conversion, which is considered a subdivision. (MPA ISO Dem. p. 12, ll. 17-18, citing Govt. Code § 66414 and RMC § 15.04.711.020.) The City argues until the City Council has resolved any appeal through this process, Plaintiff has not exhausted his administrative remedies, and the dispute is also not ripe because the available administrative process is not complete. (MPA ISO Dem. p. 14, ll. 1-10.) (*See DeLaura v. Beckett* (2006) 137 Cal.App.4th 542, 545-547 [affirming order sustaining demurrer to declaratory relief claim over City rent control ordinance where the rent control ordinance provided an administrative remedy to landlord].) The Court agrees with the City, in part.

2. Court's Analysis

Plaintiff's complaint shows that Plaintiff submitted a parcel map for a lot split, proposing to divide his property into two legally separate lots with a utility easement to address the lack of utility meters on one of the two proposed parcels. (Compl. ¶¶ 3-10, 13-18, 22, 32-34, 39 and Exhs. B-F, G, I.) Plaintiff points to Exhibit J to the complaint as a definitive statement of the determination by the Director (who is the Zoning Administrator) demonstrating a determination was made by the City, supporting exhaustion and ripeness of the dispute. In Exhibit J, Mr. Lopez indicates Plaintiff's proposed utility easement arrangement for the lot split is only allowed "for condominium projects where a Homeowner Association is created. Your subdivision involves the creation of separate parcels of land and the decision of the Director is to approve it, subject to having separate utilities serving each parcel." (Compl. Exh. J – 3/6/2025 email [emphasis added].)

The Court finds that exhaustion of administrative remedies is **satisfied** to the extent Plaintiff is challenging the City Defendants' determination of Plaintiff's application for a lot split subdivision. Though the City Defendants point to RMC sections 15.04.703.060 and 15.04.703.070 as governing the administrative process, which would provide a hearing before the Planning Commission for approval of the parcel map, other portions of the RMC provide a different avenue for administrative approval and appeal of the parcel map for the subdivision. (See RMC §§ 15.04.104.020 Definitions ["Zoning Administrator" and "Director"], 15.04.702.010 E. and F. [defining the Zoning Administrator and Director as the Director of Planning and Zoning, and providing that the Zoning Administrator is

"responsible for the approval, conditional approval or denial of Parcel Maps," and the Planning Commission is "responsible for approving, conditionally approving, or denying tentative maps for Major Subdivisions and appeals of Parcel Maps." (Emphasis added.)). (See also Compl. Exh. J regarding the Director's "decision" on the parcel map.) These provisions (RMC section 15.04.703.060 and RMC section 15.04.702.010 E and F) are in conflict as to whether the Zoning Administrator/Director or the Planning Commission approves the parcel map and the applicable administrative and appeal process.

The City Defendants state in their opening memorandum: "[T]he City is willing to present the Application to the Planning Commission. The City had waited to see if Plaintiff would accept the requirement (or condition of approval) to relocate utilities. Unfortunately, it has become evident that Plaintiff insists on approval upon his terms. But if he still wants a Planning Commission hearing on his Application, the City will provide it." (MPA ISO Dem. p. 16, fn. 6 [emphasis added].) The City Defendants in effect concede that the City failed or refused to provide Plaintiff the administrative remedy they contend is appropriate under RMC section 15.04.703.060, which mandates that the Zoning Administrator schedule a hearing on a completed application. The City Defendants question whether the March 6, 2025 email setting forth the Director of Planning's determination to approve the parcel map subject to the condition that separate utilities be provided to each property, but the email clearly stated the Director's decision. Under the alternative, conflicting RMC provisions cited above, it is also clear that the Director did not issue a Notice of Action on his "decision" reflected in Exhibit J to trigger the appeal process for a hearing before the Planning Commission. (MPA ISO Dem. p. 16, fn. 6.)

With respect to the proposed lot split and the conditions for such a subdivision, the facts alleged in the complaint, accepted as true, support that (a) the City's administrative procedures in RMC sections 15.04.703.060, 15.04.703.070, and 15.04.702.010 E. and F. are inconsistent, and fail to provide a clear set of administrative procedures for obtaining and challenging the Director's decision, and (b) the City's refusal to bring his completed application before the Planning Commission for a public hearing and approval despite his repeated efforts to do so, even by cancellation of his application which should have resulted in a denial letter, left Plaintiff with no administrative remedy available, or no adequate remedy, to address the City's refusal to advance the application to the Planning Commission. The Court finds persuasive the position that under the circumstances, the March 6, 2025 email (Exhibit J) provides a sufficiently definite decision on the lot split to make the controversy over the decision ripe.

Plaintiff, however, also alleges that he cancelled his lot split application and that he instead sought to pursue a condominium conversion for the Property. He seeks relief in the complaint based on the City's failure to approve his application as a condominium conversion. But the record before the Court does not support that Plaintiff had before the City a complete application for approval of a condominium conversion for the Property or that the City made any decision regarding a condominium conversion for the Property.

Plaintiff himself though cites the Civil Code definition of a "condominium project, which is "a real property development consisting of condominiums," and a condominium in turn is defined as "an undivided interest in common in a portion of real property coupled with a separate interest in space

called a unit, the boundaries of which are described on a recorded . . . parcel map . . ." (Civ. Code § 4125(a) and (b) [emphasis added].) Plaintiff alleges that "the creation of two condominium units on a single parcel is legal and does not require the creation of new legal lots" (Compl. p. 16, ¶ j [emphasis added]), but he does not allege the application documentation presented to the City for a condominium conversion included a parcel map for a single parcel with condominium units and common areas, nor did he submit any condominium or homeowners association documentation to the City as part of the application, which Plaintiff admits in his own allegations. (Compl. p. 16, ¶ k ["If Defendant's concern was the lack of a Homeowners Association, Plaintiff made clear that he was willing to provide a simple HOA document to address the City's concern."] and Exh. J [3/6/2025 email stating utility easement arrangement that would only be sufficient for a condominium project with a homeowner's association.]) The parcel maps Plaintiff submitted to the City do not appear to show an "undivided interest in common in a portion of the real property" and "units" with boundaries described in the proposed parcel maps; the parcel maps and related documents show a lot split subdivision. (Compl. Exhs. B-F, H, I.)

Because the Court finds that Plaintiff has exhausted his administrative remedies to the extent his claims are based on the conditional approval of the lot split subdivision, the demurrer to the complaint in its entirety based on lack of exhaustion and ripeness is **OVERRULED**. The Court will not, however, consider the merits of Plaintiff's claims to the extent they are based on failure to approve his application as a condominium conversion for lack of exhaustion and ripeness.

C. Petition for Writ of Mandate and Declaratory Relief (1st Cause of Action)

The City Defendants argue this cause of action fails for several reasons on its merits. Based on the Court's ruling on exhaustion and ripeness, the Court only addresses this cause of action to the extent it is based on the City's alleged improper conditional approval of the lot split subdivision.

1. City's Offer for Planning Commission Hearing to Resolving This Cause of Action

As a preliminary matter, the City Defendants argue in a footnote that the City is willing to provide Plaintiff an administrative hearing before the Planning Commission, a hearing the City impliedly admits it refused to provide previously. (MPA ISO Dem. p. 12, fn. 6.) Based on that offer, the City Defendants conclude: "Thus, no writ is warranted to compel a hearing. (*See Hutchison v. Reclamation Dist. No. 1619* (1927) 81 Cal.App. 427, 433 ['writ may be denied when the respondent shows a willingness to perform the act without coercion'].)"

Plaintiff's first cause of action does not ask for an order compelling a hearing before the Planning Commission. Instead, he asks the Court to direct the City to approve his application and for a declaration he does not have to relocate the utilities. (Compl. ¶¶ 10, 11; Prayer for Relief ¶¶ 2, 3.) The City's offer to now set a hearing before the Planning Commission therefore does not warrant denial of the writ under the *Hutchison* case for that reason. On the other hand, the City in effect concedes it should have provided Plaintiff a hearing before the Planning Commission on his lot split application and the conditions imposed. The City's position supports that to the extent the demurrer to this cause of action is sustained and Plaintiff is given leave to amend, Plaintiff could at a minimum state a cause of action for a writ of mandate directing the City to schedule a hearing on his lot split application before the Planning Commission.

2. Declaratory Relief Not Available to Challenge Administrative Decision

Plaintiff's first cause of action combines a petition for writ of mandate with a request for declaratory relief. The City Defendants contend that an action for declaratory relief may not be maintained to challenge an agency's administrative decision, citing *Tejon, supra*, and *City of Pasadena v. Cohen* (2014) 228 Cal.App.4th 1461. The Court in *Tejon* explained that though declaratory relief may be appropriate to challenge the constitutionality of a statute or regulation, "[w]here, as here, the challenge is to a regulation's 'application to the lands of the complaining part[y], . . . the proper and sole remedy [is] administrative mandamus.' [Citations omitted.]" (*Id.* at 154-155 [concluding the demurrer to the declaratory relief claim properly sustained, "[b]ecause [plaintiff's] complaint and FAC improperly sought declaratory relief to review a purported administrative decision."].)

In *City of Pasadena, supra*, 228 Cal.App.4th 1461, the Court reversed the trial court's order granting a preliminary injunction on a declaratory relief claim. Citing the "settled" rule " 'that an action for declaratory relief is not appropriate to review an administrative decision.' [Citations omitted]." the Court stated the trial court instead "could have simply denied injunctive relief and dismissed the action on this ground (with or without leave to amend), or it could have construed the City's pleading as one seeking traditional mandate and (if it has adequately stated the City's entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The request for declaratory relief to review the City's administrative decision is not available under these authorities. Since a demurrer to a cause of action can only be sustained if it fully disposes of the cause of action (*see, e.g., PH II, supra*, 33 Cal.App.4th at 1682-1683), the Court considers whether the first cause of action adequately state a claim for a writ of mandate in addition to declaratory relief.

2. Grounds for Relief Under Traditional Mandamus, Code of Civil Procedure section 1085

Plaintiff seeks a writ of mandate "compelling the city to approve Plaintiff's subdivision or condominium conversion." (Compl. ¶ 10.) He prays for an injunction or writ of mandate "directing Defendants to approve Plaintiff's application to subdivide and/or convert the duplex property . . . into two separate legal condominium or townhouse units," and an order "requiring Defendants to forward the approved parcel map and all necessary documentation to the Contra Costa Recorder's Office for recordation." (Prayer for Relief ¶¶ 2, 3.)

a. Writ of Mandate Standards

Code of Civil Procedure section 1085 provides that "A writ of mandate may be issued by any court to any . . . board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station" (Code Civ. Proc. § 1085(a).) "To obtain a writ of mandate, 'the petitioner must show there is no other plain, speedy, and adequate remedy; the respondent has a clear, present, and ministerial duty to act in a particular way; and the petitioner has a clear, present and beneficial right to performance of that duty.' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency v. Superior Court* (2024) 99 Cal.App.5th 705, 721.) (*See also Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

" 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in

obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists.' [Citation omitted.]" (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.) " 'Put another way, a ministerial act is one "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take," thus "eliminat[ing] any element of discretion." ' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency, supra*, 99 Cal.App.5th at 721.) "While a writ may issue against a county, city or other public body or against a public officer, ' "the writ will not lie to control discretion conferred upon a public officer or agency. [Citations.] . . . " ' [Citation omitted.]" (*Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

b. No Clear, Present and Mandatory Ministerial Duty

Plaintiff contends the City has a mandatory duty to approve the parcel map and allow him to "subdivide and/or convert" his duplex into a condominium because his proposed conversion of the duplex meets the definition of a condominium under former Civil Code section 1351, a statute that was repealed in 2014. The current statute defining a condominium project and condominium is Civil Code section 4125 and is quoted above. He makes other legal arguments as to why he was entitled to have the City approve his Property for a condominium conversion, including preemption under Government Code section 66428(b) of the Subdivision Map Act ("SMA"). Plaintiff cites Government Code section 66428(b) and RMC section 15.04.711.010 as creating the mandatory duty on the City that he alleges in this cause of action.

Government Code section 66428(b) only requires that a local agency enact an ordinance establishing a procedure for waiving the requirement of a parcel map, but it gives the local agency discretion as to the nature and application of the waiver procedure. "The procedure may include provisions for waiving the requirement for a tentative and final map for the construction of a condominium project on a single parcel. The ordinance shall require a finding by the legislative body or advisory agency, that the proposed division of land complies with requirements established by this division or local ordinance enacted pursuant thereto as to area, improvement and design, floodwater drainage control, appropriate improved public roads, sanitary disposal facilities, water supply availability, environmental protection, and other requirements of this division or local ordinance enacted pursuant thereto. In any case, where the requirement for a parcel map is waived by local ordinance pursuant to this section, a tentative map may be required by local ordinance." (Govt. Code § 66428(b) [emphasis added].)

Plaintiff does not explain how Government Code section 66428(b) creates a clear, present ministerial duty mandating that the City approve his subdivision or condominium conversion, including Plaintiff's proposed parcel map and related documentation, without the exercise of any discretion. The SMA statute does not mandate that the City waive a parcel map for a condominium conversion and only gives the City the right to choose whether to waive a parcel map for "construction of a condominium project," which the City did not do in its local ordinance. The City's ordinance with a procedure for waiver of a parcel map, RMC section 15.04.702.090, allows a subdivider to make an "application for waiver of parcel map" in two circumstances, neither of which is applicable to Plaintiff or his duplex. (RMC § 15.04.702.090 A. 1. and 2.) Even if the parcel map requirement is waived, "a tentative map shall be required." (RMC § 15.04.702.090 C.) Plaintiff does not allege that he made an application for

waiver of a parcel map for his subdivision/condominium conversion in any event. Rather, he alleges that he applied to subdivide or convert his duplex and submitted a proposed parcel map as part of that application process. (Compl. ¶¶ 3, 9, 10-18, 21, 22, 26 [project a minor subdivision], and Exhs. B-F.)

It is not clear to the Court that RMC section 15.04.711.010 would apply since it is titled "Standards for New Residential Condominiums," the stated purpose refers to ensuring "new condominiums meet sound construction criteria," and includes a long section on "Development Standards" that appear to have no application to the conversion of a duplex to a condominium. (RMC § 15.04.711.010 A.1 and B.) But Plaintiff himself alleges that "§ 15.04.711.010 applies to new developments of condominiums, stock cooperatives, and community apartments and is not intended to govern minor subdivisions of 2-4 unit residential properties such as Plaintiff's." (Compl. ¶ d., p. 17, ll. 24-28 [emphasis added].)

In any event, RMC section 15.04.711.010 has requirements for Covenants, Conditions and Restrictions (CC&Rs) for a condominium project. It "require[s]" CC&Rs to be "developed" and "reviewed and approved by the City Attorney and Zoning Administrator prior to approval of the Final or Parcel Map." There are detailed provisions which must be included in the CC&Rs, among other things referring to an "Association" and its powers or duties for making annual assessments for maintenance and special assessments for capital improvements, and the Condominium Owners' Association having "an easement for entry upon any privately owned unity, where necessary, in connection with the construction, maintenance, or repair for the benefit of the Common Area or owners of the units in common." (RMC § 15.04.711.010 C., including C.3., C.5, C.8, and C. 9.) Plaintiff admits he did not submit any homeowners association or condominium association document to the City with his application. (Compl. p. 16, ¶ k.)

These authorities do not demonstrate that the City had no discretion to require the relocation of the utility meters as part of the approval of the Property for a lot split subdivision, the only application which was complete and decided by the City based on the March 6, 2025 email Plaintiff relies on to demonstrate exhaustion and that his dispute with the City is ripe. (Compl. Exh. J.) Though Plaintiff's complaint includes allegations as to why relocation of the utility meters was impractical, because of delay and expense, Plaintiff cites no authority that makes the alleged impracticality a basis for concluding the City had a clear, present, and mandatory duty to approve the lot split subdivision based on the utility easement without a homeowners association or without the utility meter relocation condition. (Compl. pp. 12-14, ¶¶ a-j.) Plaintiff has not cited any authority that delay or expense of a proposed condition converts the approval of a subdivision to a purely ministerial duty without any discretion to impose such a requirement on the approval of the subdivision.

Plaintiff cannot base his petition for writ of mandate on the City's alleged failure to approve the Property for a condominium conversion on the current record. The allegations of the complaint and exhibits show the City only addressed the application as a lot split subdivision based on the documentation Plaintiff presented. That the record does not provide a basis for finding the City made a determination on Plaintiff's project as a condominium conversion which the City had to approve under RMC section 15.04.711.010. Even if Plaintiff contends that, despite the documents presented to the City show the Property being divided into two separate legal lots, the City was "really" treating the application as a condominium conversion, for the reasons stated above, Plaintiff does not explain

how either Government Code section 66428(b) or any provisions of RMC section 15.04.711.010 mandate approval of his application for a condominium conversion. Plaintiff does not allege his application to the City included any CC&Rs or provided for a Condominium Owners' Association. To the contrary, he admits it did not since he alleges only he was "willing to provide" a homeowners association document. (Compl. p. 16, ¶ k.)

The demurrer to the first cause of action is **sustained, with leave to amend**.

D. Abuse of Discretion, Misapplication of Municipal Code, and Declaratory and Injunctive Relief Claims (2nd, 5th and 7th Causes of Action)

Plaintiff alleges subsequent causes of action that are generally duplicative of the first. In the second cause of action, he alleges the City abused its discretion in not approving his proposed lot split or condominium conversion as presented. (Compl. pp. 38-39.) He alleges the City misapplied the RMC provisions to his proposed lot split/condominium conversion by applying RMC section 15.04.711.020 instead of RMC section 15.04.711.010 in his fifth cause of action. (Compl. p. 41.) He seeks declaratory and injunctive relief in his seventh cause of action, requesting the same relief as the first cause of action to compel the City to approve his application as presented. (Compl. pp. 42-43.)

For the same reasons the first cause of action fails to allege facts that state a right to a writ of mandate or declaratory relief, the seventh cause of action fails. Plaintiff seeks "injunctive relief compelling the City to approve and forward the parcel map for recordation." (Compl. 7th C/A ¶ 3.) The seventh cause of action is duplicative of the first. Injunctive relief is a remedy for an injury that must be founded on a substantive claim against the defendants, in this case, based on Plaintiff's right to a writ of mandamus. (*Camp v. Board of Supervisors* (1981) 123 Cal.App.3d 334, 356 ["Injunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief may be granted"]; *Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 984-985 [same].) The demurrer to the seventh cause of action is **SUSTAINED** on these grounds.

As to the "abuse of discretion" cause of action (2nd C/A), in determining a writ of mandate based on a city's interpretation and implementation of its own ordinance, the Court's evaluation "[]" is limited to an inquiry into whether the action was arbitrary, capricious or entirely lacking in evidentiary support. [Citation.]' . . . [Citation, some internal quotation marks omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1082.) The Court accords "great weight to the administrative agency's interpretation and implementation of the ordinance it was charged with executing. [Citations omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1091.) Plaintiff's allegations in the second cause of action are that "Lopez and the City of Richmond had discretionary authority to approve or deny the application" but must do so in good faith. (Compl. ¶ 4.) The allegation contradicts the allegations of the first and seventh cause of action that the City Defendants had a mandatory, ministerial duty to approve his application.

The fact that Plaintiff proposed a utility easement to address access to the public utilities necessary to service one of the parcels once the property was divided into two separate legal lots implicitly concedes the existence of a legitimate government objective of providing utility service and monitoring the utility meters servicing the properties. As Plaintiff alleges, his objection to relocating the three meters to the property being serviced by the utilities was the delay and expense, not the fact the City had a legitimate government interest it was trying to enforce. (Compl. ¶ 10.) The facts as

presently alleged in the Complaint are insufficient to state a claim that the condition imposed in the March 6, 2025 was "arbitrary, capricious, or entirely lacking in evidentiary support." (*Sacks, supra*, 190 Cal.App.4th at 1082.)

Plaintiff alleges that his application was in "full compliance" with the requirements for "a minor subdivision and/or condominium conversion" and that the City Defendants abused their discretion in applying RMC section 15.04.711.020 to his project. (Compl. pp. 38-39.) For the reasons set forth above, it is not clear that RMC section 15.04.711.010 applies or that Plaintiff alleges facts showing he has met the requirements of that statute if, as he alleges, that statute applies to his minor subdivision or condominium conversion, at least with respect to a Condominium Owners' Association and CC&Rs. (See also Compl. Exhs. B, C, F, H [utility easements], and J [approval subject to change in utility box location, referring to projects with Homeowners' Association which his project does not have].)

The record indicates that to the extent Plaintiff intended to apply for a condominium conversion which would require, among other things, a homeowners association with applicable documentation, that document was not submitted to the City, and Plaintiff has not exhausted his administrative remedies as to any condominium conversion determination. The Court therefore does not address the arguments regarding preemption of any prohibition on a condominium conversion for less than five units under RMC section 15.04.711.020. Claims regarding abuse of discretion, misapplication of the RMC, and declaratory and injunctive relief for failure to approve the Property for condominium conversion are also not ripe for the reasons indicated above.

The facts alleged in the complaint and attached exhibits are insufficient to support that the City Defendants' decision to approve the lot split subject to relocation of the utility meters was "arbitrary, capricious or entirely lacking in evidentiary support" under the RMC. Again, Plaintiff's arguments primarily rely on his position that the City had to approve his application as a condominium conversion despite admittedly missing homeowners association documents for a condominium project and the parcel maps submitted for two separate legal lots, not a single property with defined unit boundaries and common areas. (Civ. Code § 4125.)

The demurrer to the second cause of action is therefore also **SUSTAINED** for these reasons.

These reasons also support sustaining the demurrer to the fifth cause of action for "misapplication of Municipal Code," as the facts as alleged do not show the City Defendants misapplied RMC sections 15.04.711.010 and 15.04.711.020 to Plaintiff's application for a lot split subdivision. Plaintiff has failed to exhaust his administrative remedies as to his claims regarding the City's failure to approve a proposed condominium conversion, and those claims are not ripe. The demurrer to the fifth cause of action is **SUSTAINED**.

E. Equal Protection and Discrimination (4th and 6th Causes of Action)

"The federal equal protection clause (U.S. Const., 14th Amend.) and its California counterpart (Cal. Const., art. I, § 7, subd. (a)) provide that persons who are similarly situated with respect to the legitimate purpose of a law must be treated alike under the law. [Citations omitted.] Equal protection challenges typically involve claims of discrimination against an identifiable class or group of persons. The United States Supreme Court in *Village of Willowbrook v. Olech* (2000) 528 U.S. 562, 564 (*Olech*), however, held that a plaintiff who does not allege membership in a class or group may state a claim

as a "class of one." [Citation omitted.] (*Las Lomas Land Co., LLC v. City of Los Angeles* (2009) 177 Cal.App.4th 837, 857.) "To state a "class of one" equal protection claim, the plaintiff must allege that '(1) the plaintiff was treated differently from other similarly situated persons, (2) the difference in treatment was intentional, and (3) there was no rational basis for the difference in treatment.' [Citation omitted.]" (*California Resources Production Corp. v. Antioch City Council* (2024) 107 Cal.App.5th 481, 490 [affirming order sustaining demurrer to "class of one" equal protection claim].)

The Court in *California Resources Production Corp.* explained, "When a plaintiff seeks to prevail in a 'class of one' equal protection case, 'the existence of persons in similar circumstances who received more favorable treatment than the plaintiff is offered to provide an inference that the plaintiff was intentionally singled out for reasons that so lack any reasonable nexus with a legitimate governmental policy that an improper purpose—whether personal or otherwise—is all but certain.' [Citation omitted.] For this inference to arise, ' "the level of similarity between [the plaintiff] and the persons with whom they compare themselves must be extremely high." ' [Citations omitted.]" (*California Resources Production Corp., supra*, 107 Cal.App.5th at 491-492 [emphasis added].)

Plaintiff does not allege in the Complaint that he was denied equal protection of the laws or was discriminated against based on his status as a member of a protected class. Rather, Plaintiff alleges in the fourth cause of action that the City Defendants denied him equal protection of the laws because the City Defendants refused to approve his condominium conversion, but they approved condominium conversions of other properties with four or fewer units without requiring separate utility meters for each unit to be located (or relocated) to each unit at the project. He alleges Defendants' denied Plaintiff's condominium conversion application but Exhibit J to the Complaint indicates the City Defendants approved the lot split subdivision application but imposed a condition on approval regarding moving the utility boxes to which Plaintiff objects as based on "inconsistent standards" or "unreasonable." (Compl. pp. 40-41.)

Plaintiff's equal protection and discrimination claims are based entirely on the City's failure to approve the Property for a condominium conversion, a claim which the Court concludes Plaintiff has not shown he can pursue based on his failure to exhaust his administrative remedies and lack of ripeness of the dispute over converting the Property to a condominium Project. As a claim based on the City's imposition of an improper condition on the lot split subdivision, Plaintiff does not allege the facts necessary to show an extremely high level of similarity with the treatment of other properties and property owners, since the two properties Plaintiff alleges for comparison were both condominium projects, not lot split subdivisions in which one property was divided into two legally separate parcels with no common areas or condominium or homeowners association. (See Compl. pp. 19-23 and Exh. M [notably, referring to a parcel map recorded in 1980 and CC&Rs recorded in 1992]; pp. 21-23 and Exh. Q [notably, Plaintiff alleges Mr. Lopez informed him the Barrett Property was constructed as a new condominium project, not a condominium conversion].) The Complaint therefore fails to allege facts sufficient to state these causes of action as to the City's approval of the lot split subdivision, with the relocation of utility meter condition, the only determination made by the City Defendants as to which Plaintiff has exhausted his administrative remedies, and which is ripe for review.

The demurrer to the fourth and sixth causes of action is **SUSTAINED**.

F. Negligence (3rd Cause of Action)

Negligence is a tort. Under Government Code section 820, "Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Govt. Code § 820(a).) To the extent that the public employee Mr. Lopez is immune from liability under the Government Code, the City will also be immune. (Govt. Code § 815.2(b) [generally, public entity not liable "for an injury resulting in an act or omission of an employee of the public entity where the employee is immune from liability."].) Statutory liabilities of public entities and public employees under Government Code section 815 are subordinated to statutory immunities. (*Torres v. Department of Corrections & Rehabilitation* (2013) 217 Cal.App.4th 844, 849 [citing *Harshbarger v. City of Colton* (1988) 197 Cal.App.3d 1335, 1340–1341].)

Plaintiff alleges the City Defendants breached a duty of care owed to him in reviewing and processing his land use application by not "properly" applying the land use provisions of the RMC, giving "misleading or inconsistent guidance" to Plaintiff, "delaying or obstructing" the application process despite his contention that he had completed all the requirements, and by Mr. Lopez acting "without the diligence and competence expected of a public official in his role." (Compl. pp. 39-40, 3rd C/A ¶¶ 2-4.) Plaintiff does not allege and has not cited in his opposition any statute imposing liability on the City itself for negligence. An employee of a public entity has immunity for discretionary acts, whether or not the employee abused his or her discretion. (Govt. Code § 820.2 [generally, "a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of discretion vested in him, whether or not such discretion be abused"].)

The City Defendants also cite Government Code sections 818.4 and 821.2. A public entity is immune from liability for the public entity or its employee's denial or failure or refusal to issue "approval, order or similar authorization where the public entity or an employee of a public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." (Govt. Code § 818.4.) An employee of a public entity has similar immunity. (Govt. Code § 821.2 ["A public employee is not liable for an injury caused by his issuance, denial, suspension or revocation of, or by his failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where he is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked."].)

Plaintiff does not address these authorities in his opposition, including the specific immunities for a failure or refusal to issue or deny permits, licenses, certificates, approvals, orders or "similar" authorizations. (Govt. Code §§ 818.4 and 821.2.) Plaintiff does not dispute that the City Defendants were authorized under the SMA and RMC "to determine whether or not such authorization should be" issued or denied. (*Id.*)

The demurrer to the third cause of action is **SUSTAINED**.

G. Failure to Perform Mandatory Duty (8th Cause of Action)

Plaintiff alleges the eighth cause of action under Government Code section 815.6 which provides, "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it

exercised reasonable diligence to discharge the duty." (Govt. Code § 815.6.)

"The elements of liability under Government Code section 815.6 are as follows: 'First and foremost, application of section 815.6 requires that the enactment at issue be *obligatory*, rather than merely discretionary or permissive, in its directions to the public entity; it must *require*, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.].' [Citation omitted, italics in original.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines.' [Citations omitted.] [¶] 'Second, but equally important, section 815.6 requires that the mandatory duty be "designed" to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is " 'one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.' " [Citation.] . . . If these two prongs are met, the next question is whether the breach of the duty was a proximate cause of the plaintiff's injury. [Citations omitted.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898 [quoting among others *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498, 499].)

To the extent that this cause of action is based on a claim that the City had a mandatory duty to approve Plaintiff's application without imposition of the condition of relocating the utility boxes, Plaintiff has not presented applicable law mandating such approval, and therefore, has not alleged facts sufficient to show that the City violated a mandatory duty in not so approving his application. (See Analysis Sections C and D above.) To the contrary, the immunity provisions of Government Code sections 818.4 and 821.2 make the City and Mr. Lopez immune from liability for failure or refusal to issue a permit, license, approval, certificate or "similar authorization." To the extent this cause of action is based on that contention, the cause of action as pled fails.

Nevertheless, Plaintiff's Complaint with regard to the eighth cause of action is ambiguous. Plaintiff incorporates all his prior allegations into this cause of action which allege the City Defendants had a mandatory duty to approve his application without the condition to which he objects. (Compl. p. 43, 8th C/A, ¶ 1.) However, Plaintiff's allegations in connection with this cause of action also include allegations that the City Defendants are liable for "failing to carry out the ministerial task of issuing a decision and processing the completed application," that the City "had a ministerial duty to review and process the application in accordance with applicable Municipal Code sections," and that the City Defendants "failed to act as required by law." (Compl. p. 35, ¶ 8 [Failure to Perform a Mandatory Duty] and p. 43, 8th C/A, ¶¶ 3 and 5 [emphasis added].)

As set forth above, while the City Defendants may have had discretion in determining whether to approve Plaintiff's application for the condominium conversion or lot split, the RMC on its face imposes a mandatory obligation to issue a Notice of Action based on the Zoning Administrator/Director of Planning's decision once made (RMC §§ 15.04.104.020 Definitions ["Zoning Administrator" and "Director"], 15.04.702.010 E and F) or to set the application for hearing on the Planning Commission agenda and give notice of the hearing (RMC §§ 15.04.703.060 and 15.04.703.070). Indeed, the City Defendants in effect admit they did not comply with the requirement to set a hearing on Plaintiff's application before the Planning Commission based on their contention

the application is governed by RMC sections 15.04.703.060 and 15.04.703.070, in offering to schedule the hearing they failed to notice. (MPA ISO Dem. p. 16, fn. 6.) The failure by the City Defendants to issue a Notice of Action and serve notice as required or to set a hearing on the application before the Planning Commission may be a failure to perform a mandatory duty imposed under the RMC that could support the first element necessary to state this cause of action.

As to the second element, the lack of a Notice of Action or failure to schedule the application for hearing before the Planning Commission deprived Plaintiff of the opportunity for a hearing before the Planning Commission to address the applicable RMC and SMA provisions and to make his case that the utility boxes could not be relocated in the absence of utility lines under 24th Street. The provisions for the Notice of Action and scheduling of the Planning Commission hearing appear to be intended to protect the applicant's right to address concerns regarding the application or conditions imposed, such that the injury Plaintiff alleges he suffered is one that the mandatory duties under the RMC are designed to protect against.

A statutory cause of action, however, must be pled with specificity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) Plaintiff's allegations regarding discretionary duties which are at least in part the basis for this cause of action do not support the claim. Despite some allegations referring to reviewing and processing the application, the allegations that "Plaintiff met all criteria for approval" and "failed to act as required by law" (Compl. p. 43, 8th C/A ¶¶ 4, 5) in the context of the other allegations of the complaint incorporated into this cause of action suggest it is the failure by the City to approve the lot split subdivision without the utility relocation condition or to approve the application as a condominium conversion are the mandatory duties Plaintiff is alleging the City failed to perform. To the extent those are the mandatory duties Plaintiff asserts the City failed to perform, the claim fails to state a cause of action for the reasons detailed above. At a minimum, the allegations are so unclear and uncertain they fail to meet the specificity of pleading requirement.

Plaintiff may be able to allege a breach of mandatory duty to state this claim with respect to failure to issue a Notice of Action or schedule the Planning Commission hearing. The Court cannot conclude that the complaint as presently pled is asserting either of those failures as the basis for this cause of action and as the relief he requests on this cause of action. The demurrer to the eighth cause of action is therefore **SUSTAINED**.

H. Retaliation (9th Cause of Action)

The City Defendants argue that Plaintiff's ninth cause of action labeled "retaliation" is a tort claim barred for the same reasons the negligence claim is barred. Plaintiff's retaliation cause of action alleges (a) after Plaintiff filed his government claim, the City "issued an undated inspection notice, which appeared retaliatory," and (b) the City's claims investigator who apparently reviewed Plaintiff's government claim "suggested that filing a lawsuit would result in Plaintiff being forced to pay the City's legal fees." (Compl. pp. 43-44, 9th C/A ¶¶ 2, 3.) The issuance of an inspection notice or "suggestion" Plaintiff could be liable for attorneys' fees both appear to be discretionary acts to which the immunity of Government Code section 820.2 would apply, even if the City Defendants abused their discretion. Plaintiff cites no contrary authority and does not address why the discretionary

immunity statute does not apply.

The demurrer to the ninth cause of action is **SUSTAINED**.

18. 9:00 AM CASE NUMBER: MSC17-01266

**CASE NAME: PETER NOWICKI VS. CONTRA COSTA COUNTY EMPLOYEES' RETIREMENT ASSOCIATION
HEARING ON PETITION IN RE: WRIT OF MANDATE**

FILED BY:

TENTATIVE RULING:

Before the Court issues a writ of mandate on Petitioner's Fourth Amended Petition, the Petitioner asks that the Court resolve several issues: (1) the proper prejudgment interest rate; (2) whether the Contra Costa County Employees' Retirement Association ("CCCERA") should be held responsible for the Moraga-Orinda Fire District's interest rate payment; and (3) reconsideration of the Court's order denying leave to amend the petition entered on August 13, 2024.

As a threshold issue, the Court notes that Petitioner's request that "the Court reconsider its order denying Mr. Nowicki's motion for leave to amend for the sole purpose of permitting Mr. Nowicki to recover the interest from the Fire District" is both untimely and unsupported by new facts or law. Motions for reconsideration must be brought "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc. § 1008(a).)

For the following reasons, the Court concludes that the Civil Code section 3287's prejudgment interest rate of 7% applies and CCCERA cannot be compelled to pay interest on Petitioner's Replacement Benefit Plan payments from the Fire District.

General Factual and Procedural Background

Petitioner Peter J. Nowicki joined the Moraga-Orinda Fire District in 1983 as a firefighter. He advanced through the ranks and in July 2006 was promoted to the position of Fire Chief. Mr. Nowicki's fire chief employment contract included an annual salary of \$173,000 and other benefits, including accrual of vacation time at the rate of 20 hours per month, with a maximum accrual of 400 hours. In compliance with the terms of his employment agreement, Nowicki made contributions to CCCERA.

In May 2007, Mr. Nowicki submitted documentation to the Fire District Board regarding his annual performance evaluation to support a salary increase. His contract was amended on February 6, 2008, but made retroactive to July 2007, which increased his annual salary to \$186,000. It also included a vacation sell-back provision to off-set the loss of accrued vacation in excess of the 400 hour annual cap. Mr. Nowicki exercised the sell-back option several times. Nowicki's salary was retroactively adjusted two more times.

On January 30, 2009, Mr. Nowicki retired from the Fire District at the age of 50 with a pension benefit